

prevent wildlife or other types of sound or motion from triggering the sensors during the late night or early morning since there are many coyotes, racoons, squirrels, birds, bats, rats, deer (and kids and pets and more) that do show up more than occasionally at various locations and times on the property.” (Id., ¶14.) Lastly, he declares if the system is still being triggered late at night or in the early morning, it is most likely because the Prines, Sundes, or one of their customers or some other animal are approaching his home garages, vehicles, pets or personal space, which is what the Security System is intended to capture and hopefully deter or prevent – or at least archive for later follow up if not immediate. (Id., ¶15.)

10. *City of Riverside v. Rubidoux Community Servs. Dist.*, Case No. CIVSB1310520
Evidentiary Hearing/ Oral Argument
6/12/26, 9:00 a.m., Dept. S-17

Here, the City of Riverside seeks to recover \$21,099,675.00 from the District, representing the District’s 7.6% contractual share of capital costs for improvements to the regional wastewater treatment plant. (Statement of Evidence (SOE) # 1.)

The Court of Appeal overturned the initial trial court decision and instructed the lower court to focus specifically on whether any post-1990 regulatory changes necessitated and directly required the plant upgrades, making them nondiscretionary under the 1990 Agreement.

The limited nature of the review of evidence as framed by the Court of Appeals is whether these improvements were required by post-1990 environmental regulations, which Rubidoux must help fund, or were discretionary (or a matter of preference) which Rubidoux could avoid. The Court of Appeal directed further proceedings to “determine the specific regulatory requirements that necessitated some or all of the upgrades, if any.” (SOE Nos. 2-3.)

The Court is inclined to take the matter under submission following oral argument.

As to the Objection to Notice of Intent to Introduce Oral Witness Testimony: Riverside objected the District’s notice of intent to introduce oral testimony, citing prior failure to disclose the intended witness, failure to identify her as an expert, and inappropriate new testimony. The Court will hear argument on this topic, but it is inclined to **GRANT** the objection and preclude the testimony, as no new evidence was requested from the Court and its allowance may cause undue prejudice and delay.
